

lunatic] retains its character of real estate [and on his death intestate descends to his heir-at-law, but the heir will take * it as realty or personalty according to its actual state of investment (a).] [*152]

So, where in a partition suit a sale was directed of certain real estate, one-eighth of which belonged to a married woman in fee, and an order was subsequently made directing that the husband and wife accepting a certain sum as the purchase-money of the one-eighth, that sum shall be paid into Court, which was accordingly done, but before any conveyance was executed the married woman died, it was held that the purchase-money must be treated as realty (b). But since the Partition Act, 1876, if an order be made for the sale of a married woman's share in real estate, with her consent or at her request, it will operate as a conversion (c). Where a sale was ordered in a partition action and the share of a person who was *sui juris* was ordered to be paid to her, but before payment she became a lunatic and afterwards died intestate, it was held that conversion of the share had taken place at the date of the sale.¹

[Where discretion in trustees.—If trustees have a discretionary power of sale, and an order is made in an administration action directing a sale, the property is converted into personalty as from the date of the order (d).]

Under Lands Clauses Consolidation Act.—If land of which an infant is seised in fee simple be taken under the provisions of the Lands Clauses Consolidation Act, 1845, and the purchase-money be paid into Court, the money retains the quality of real estate, and on the death of the infant descends to his heir-at-law (e).]

Secondly. Money to be laid out on land results to the executor.—If a testator bequeath money to be laid out in a

Grimwood v. Bartels, 46 L. J. N. S. Ch. 788.] [(d) Hyett v. Mekin, 25 Ch. D. 735; Crowther v. Bradney, 28 L. T. N. S. 464.]

[(a) Mordaunt v. Benwell, 19 Ch. D. 302.] [(e) Kelland v. Fulford, 6 Ch. D. 491.]

[(b) Mildmay v. Quicke, 6 Ch. D. 553.]

[(c) Wallace v. Greenwood, 16 Ch. D. 362.]

¹ Re Pickard, 53 L. T. N. S. 293.